

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF TYUMEN REGIONAL BRANCH OF ALL-RUSSIA MOVEMENT 'FOR HUMAN RIGHTS' AND OTHERS v. RUSSIA

(Application no. 18490/09)

JUDGMENT

STRASBOURG

22 February 2022

This judgment is final but it may be subject to editorial revision.



In the case of Tyumen Regional Branch of all-Russia Movement 'for Human Rights' and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

María Elósegui, *President,*
Andreas Zünd,
Frédéric Krenc, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to:

the application (no. 18490/09) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 7 March 2009 by the first and third applicants listed in the appended table and later joined by other ten applicants listed in that table, all represented by the third applicant, a founder and the chief executive officer of the first applicant;

the decision to give notice of the application to the Russian Government ("the Government"), initially represented by Mr G. Matyushkin, former Representative of the Russian Federation to the European Court of Human Rights, and later by his successor in that office, Mr M. Vinogradov;

the parties' observations;

the Russian Government's objection to the examination of the application by a Committee and to the Court's decision to reject it;

Having deliberated in private on 25 January 2022,

Delivers the following judgment, which was adopted on that date:

SUBJECT-MATTER OF THE CASE

1. In early 2008 the Federal Registration Service of the Ministry of Justice ("the registration authority") inspected the first applicant, a human rights non-governmental organisation. The inspection report of 13 March 2008 stated that the organisation had breached domestic law and its own corporate charter. In particular, it had not informed the authorities of the election of its chief executive, opening of new offices, and its economic activities; it had submitted false information about its members, it had used unregistered logo on its documents and it had a tax dept of 49,302.39 Russian roubles.

2. On 21 March 2008 in a letter to the registration authority the first applicant contested several breaches identified by the authority and expressed its wish to rectify the remainder of them within the subsequent six to nine months. It appears that the letter remained without answer.

3. According to the Government, on 4 May 2008 the registration authority issued a formal warning to the first applicant, who was given time until 6 June 2008 to correct the breaches. The applicants denied that such warning had been issued.

4. On 5 May 2008 the registration authority applied for the first applicant's dissolution to the Tyumen Regional Court. That measure was sought as a sanction for the violations disclosed by the inspection. The court granted the application on 10 June 2008. Having confirmed the findings of the inspection it concluded that the breaches imputable to the organisation were "gross and repetitive". Since under domestic law such breaches could be punishable by the dissolution of an organisation, the court decided that the claim was lawful and that it therefore should be granted.

5. The first applicant challenged the judgment before the Supreme Court of Russia, which on 9 September 2008 endorsed the lower court's reasoning. In addition, it found that the dissolution was not disproportionate, because the first applicant had not taken any steps to put the breaches right.

6. On 7 March 2009 the third applicant acting also on behalf of the first applicant complained under Article 11 of the Convention that the dissolution of the first applicant had been a disproportionate punishment. On 25 May 2009 other applicants lodged with the Court similar complaints.

THE COURT'S ASSESSMENT

I. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. Given that applicants nos. 2 and 4-12 did not allege a breach of their right under Article 11 of the Convention until 25 May 2009, that is to say for more than eight months after the delivery of the final judgment in the dissolution proceedings on 9 September 2008, their complaints must be rejected for their failure to comply with the six-months' time-limit in accordance with Article 35 §§ 1 and 4 of the Convention.

8. The first and the third applicants who submitted their complaints on 7 March 2009, complied with the six-months rule. Their complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention or inadmissible on any other grounds. They must therefore be declared admissible.

9. The general principles concerning the dissolution of an organisation have been summarized in *Tebieti Mühafize Cemiyyeti and Israfilov v. Azerbaijan* (no. 37083/03, §§ 67-68, ECHR 2009); *Adana TAYAD v. Turkey* (no. 59835/10, §§ 27-28, 21 July 2020); and *Croatian Golf Federation v. Croatia* (no. 66994/14, §§ 97-98, 17 December 2020).

10. The first applicant's dissolution constituted an interference with the right to freedom of association. The Court accepts that it was a lawful measure aimed at protecting the rights of others (see, *mutatis mutandis, Tebieti Mühafize Cemiyyeti and Israfilov*, cited above, § 66, and *Biblical Centre of the Chuvash Republic v. Russia,* no. 33203/08, § 53, 12 June 2014).

11. It was not however shown that the dissolution was "necessary in a democratic society". The materials before the Court do not support the

Government's allegation that a formal warning preceded an action for dissolution. The registration authority applied for the first applicant's dissolution without giving the organisation an opportunity to correct the shortcomings or considering its explicit intend to do so (see paragraph 2 above). The domestic courts focused their analysis on the legality of the dissolution, without assessing its proportionality in a meaningful manner. They did not examine whether the first applicant had a history of administrative offences, whether the alleged breaches had been committed in bad faith, or whether it was possible to rectify them. They did not explain why the legitimate aim pursed by the dissolution could not have been reached with other means which would interfere less seriously with the freedom concerned (compare *Biblical Centre of the Chuvash Republic*, cited above, §§ 54-63).

12. There has accordingly been a violation of Article 11 of the Convention in respect of the first and third applicants.

II. REMAINING COMPLAINTS

13. The applicants also raised complaints under Articles 6 and 13 of the Convention. The Court considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention. It follows that they must be rejected in accordance with Article 35 § 4 of the Convention.

APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Applicants nos. 3-12 claimed 68,000 Russian roubles each in compensation of pecuniary and non-pecuniary damage. The applicants also claimed 1,100 euros (EUR) jointly in respect of costs and expenses.

15. The Government submitted that there was no causal link between the claims and the alleged violation and that the claims were unsubstantiated.

16. The Court indeed does not discern any causal link between the violation found and the pecuniary damage alleged; it therefore rejects the claim in respect of pecuniary damage. On the other hand, it awards the third applicant EUR 1,600 plus any tax that may be chargeable to that applicant, in respect of non-pecuniary damage. The Court rejects the claim for costs and expenses as being unsubstantiated.

17. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the first and the third applicants' complaints under Article 11 of the Convention admissible and the remainder of the application inadmissible;

2. *Holds* that there has been a violation of Article 11 of the Convention in respect of the first and third applicants;

3. *Holds*
   (a) that the respondent State is to pay the third applicant, within three months, EUR 1,600 (one thousand six hundred euros), plus any tax that may be chargeable, in respect of non-pecuniary damage;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amount at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

4. *Dismisses* the remainder of the applicants' claim for just satisfaction.

Done in English, and notified in writing on 22 February 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova Deputy Registrar	María Elósegui President

Appendix

No.	Applicant's Name	Year of birth/registration (if available)	Place of residence
1.	Tyumen Regional Branch of All-Russia Movement 'For Human Rights'	1998	Tyumen, Russia
2.	All-Russia Movement 'For Human Rights'	1998	Moscow, Russia
3.	Vadi Vasilyevich Postnikov	1935	Denver, USA
4.	Zoya Aleksandrovna Sultanova	-	Tobolsk, Russia
5.	Yuliya Nikolayevna Mamayeva	-	Tyumen, Russia
6.	Sergey Vladimirovich Chirkov	-	Ishim, Russia
7.	Lyubov Leonidovna Safargaliyeva	-	Bolshie Akiyary, Russia
8.	Yekaterina Fedorovna Udartseva	-	Zhiryaki, Russia
9.	Anzhelina Vadimovna Stroykina	-	Tyumen, Russia
10.	Gennadiy Konstantinovich Starkov	-	Tyumen, Russia
11.	Nina Fedorovna Saratova	-	Tyumen, Russia
12.	Andrey Sergeyevich Stroykin	-	Tyumen, Russia